

Amendment No. 1 to SB1937

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1937*

House Bill No. 2081

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 37-3-804(a), is amended by adding the following as new subdivisions:

(14) The commissioner of mental health and substance abuse services or the commissioner's designee; and

(15) One (1) at large member with experience advocating for children, appointed by the commission's co-chairs.

SECTION 2. Tennessee Code Annotated, Section 37-3-804(b)(1)(A), is amended by deleting "subdivisions (a)(1)-(5)" wherever it appears and substituting "subdivisions (a)(1)-(5) and (a)(14)".

SECTION 3. Tennessee Code Annotated, Section 37-3-804(b)(1)(B)(i), is amended by deleting "(a)(6)-(13)" and substituting "(a)(6)-(13) and (a)(15)".

SECTION 4. Tennessee Code Annotated, Section 37-3-804(b)(1)(B)(ii), is amended by deleting "(a)(6)-(13)" and substituting "(a)(6)-(13) or (a)(15)".

SECTION 5. Tennessee Code Annotated, Section 37-3-809, is amended by deleting "child protective teams," and substituting "child protective teams or the provision of services to dependent and neglected youth,".

SECTION 6. Tennessee Code Annotated, Section 37-3-803, is amended by deleting subsection (d) and substituting:

(d) The commission shall provide a report detailing the commission's findings and recommendations from a review of the appropriate sampling by no later than July 1,

2027, and annually thereafter, to the general assembly. The report must be submitted to the governor, the judiciary and health and welfare committees of the senate, and the committee of the house of representatives having jurisdiction over children.

SECTION 7. Tennessee Code Annotated, Section 37-3-809, is amended by designating the existing language as subsection (a) and adding the following as a new subsection:

(b) Notwithstanding another law to the contrary, the commission may request and have access to any records held by a state agency that are necessary for the performance of the commission's duties and responsibilities under this part.

SECTION 8. Tennessee Code Annotated, Section 37-1-102(b)(28)(A)(i), is amended by deleting "abuse, neglect, or use of force" and substituting "abuse, neglect, use of force, or strangulation, as defined in § 39-13-102(a)(2)".

SECTION 9. Tennessee Code Annotated, Section 39-15-402(a)(3), is amended by deleting "involved the infliction of torture" and substituting "involved strangulation, as defined in § 39-13-102(a)(2), or the infliction of torture".

SECTION 10. Tennessee Code Annotated, Section 37-1-130, is amended by adding the following as a new subsection:

(g) If a child found to be dependent and neglected under this part is less than one (1) year of age and the child has been diagnosed by a licensed physician with neonatal abstinence syndrome, then:

(1) The court may order the child's parent, guardian, or other custodian to:

(A) Submit to the department documentation of compliance with preventative pediatric care consistent with the periodicity schedule of the American Academy of Pediatrics until the child reaches one (1) year of age; and

(B) Submit to drug testing at regular intervals at the parent's, guardian's, or other custodian's expense if there are allegations that the

parent, guardian, or other custodian has engaged in substance misuse;

and

(2) The department may initiate a visit to ascertain the well-being of the child if the documentation provided contains allegations of abuse or neglect.

SECTION 11. Sections 8 and 9 of this act take effect July 1, 2026, the public welfare requiring it. For all other sections, this act takes effect upon becoming a law, the public welfare requiring it.